

And lastly, for the Multitude of Attorneys, it is the Fault of them that have better learned the Art of Cavilling against the Words of a Statute, than heretofore they had, and thereby encourage themselves, and others, to undertake Suits upon little Reason. Also the Variety and Repugnancy of Judgments of Common Law do oftentimes put Men to hope for Victory in Causes, whereof in Reason they had no Ground at all. Also the Ignorance of what is Equity in their own Causes, which Equity not one Man in a thousand ever studied, and the Lawyers themselves seek not for their Judgments in their own Breast, but in the Precedents of former Judges, as the ancient Judges sought the same, not in their own Reason, but in the Laws of the Empire. Another, and perhaps the greatest Cause of Multitude of Suits, is this, that for want of registering of Conveyances of Land, which might easily be done in the Townships where the Lands lie, a Purchase cannot easily be had, which will not be litigious. Lastly, I believe the Covetousness of Lawyers was not so great in ancient Time, which was full of Trouble, as they have been since in time of Peace, wherein Men have Leisure to study Fraud, and get Employment from such Men as can encourage to Contention. And how ample a Field they have to exercise this Mystery in, is manifest from this, that they have a Power to scan and construe every Word in a Statute, Charter, Feofment, Lease, or other Deed, Evidence or Testimony. But to return to the Jurisdiction of this Court of the King's Bench, where, as you say, it hath Power to correct and amend the Errors of all other Judges, but in Process, and in Judgments; cannot the Judges of the Common Pleas correct Error in Process in their own Courts, without a Writ of Error from another Court?

*La.* Yes; and there be many Statutes which command them so to do.

*Ph.* When a Writ of Error is brought out of the King's Bench, be it either Error in Process, or in Law, at whose Charge is it to be done?

*La.* At the Charge of the Client.

*Ph.* I see no Reason for that; for the Client is not in Fault, who never begins a Suit but by the Advice of his Counsel learned in the Law, whom he pays for his Counsel given. Is not this the Fault of his Counsellor? Nor when a Judge in the Common Pleas hath given an erroneous Sentence, is it always likely that the Judge of the King's Bench will reverse the Judgment, (though there be no Question but, as you may find in *Bracton* and other learned Men, he has Power to do it) because being Professors of the same Common Law, they are persuaded, for the most Part, to give the same Judgments: For Example; if Sir *Edw. Coke* in the last Term that he sat Lord Chief Justice in the Court of Common Pleas, had given an erroneous Judgment, is it likely that when he was removed and made Lord Chief Justice of the King's Bench, he would therefore have reversed the said Judgment? It is possible he might, but not very likely. And therefore I do believe there is some other Power, by the King constituted, to reverse erroneous Judgments, both in the King's Bench, and in the Court of Common Pleas.

*La.* I think not; for there is a Statute to the contrary, made 4 *Henry 4. cap. 23.* in these Words; Whereas, as well in Plea real, as in Plea personal, after Judgment in the Court of our Lord the King, the Parties be made to come upon grievous Pain, sometimes before the King himself, sometimes before the King's Council, and sometimes to the Parliament, to answer thereof a-new, to the great impoverishing of the Parties aforesaid, and to the Subversion of the Common Law of the Land, it is ordained and established, that after Judgment given in the Court of our Lord the King, the Parties, and their Heirs, shall be there in Peace, until the Judgment be undone by Attaint or by Error, if there be Error, as hath been used by the Laws in the Times of the King's Progenitors.

*Ph.* This Statute is so far from being repugnant to that I say, as it seemeth to me to have been made expressly to confirm the same: For the Substance of the Statute is, that there shall be no Suit made by either of the Parties for any thing adjudged, either in the King's Bench, or Court of Common Pleas, before the Judgment be undone by Error, or Corruption proved; and that this was the Common

Law before this making of the Statute, which could not be, except there were (before this Statute) some Courts authorised to examine, and correct such Errors as by the Plaintiff should be assigned. The Inconvenience which by this Statute was to be remedied was this, that often Judgment given in the King's Courts, by which are meant in this Place the King's Bench and Court of Common Pleas, the Party against whom the Judgment was given, did begin a new Suit, and cause his Adversary to come before the King himself; here by the King himself must be understood the King in Person; for though in a Writ by the Words *Coram nobis* is understood the King's Bench, yet in a Statute it is never so. Nor is it strange, seeing in those Days the King did usually sit in Court with his Council, to hear Causes, as sometimes King James. And sometimes the same Parties commenced their Suit before the Privy Council, though the King were absent; and sometimes before the Parliament, the former Judgment yet standing. For Remedy whereof, it was ordained by this Statute, that no Man should renew his Suit, till the former Judgment was undone by Attaint or Error; which reversing of a Judgment had been impossible, if there had been no Court (besides the aforesaid two Courts) wherein the Errors might be assigned, examined, and judged; for no Court can be esteemed in Law, or Reason, a competent Judge of its own Errors. There was therefore before this Statute some other Court existent for the hearing of Errors, and reversing of erroneous Judgments. What Court this was I enquire not yet, but I am sure it could not be either the Parliament or the Privy Council, or the Court wherein the erroneous Judgment was given.

*La.* The Doctor and Student discourse of this Statute, *cap.* 18. much otherwise than you do: For the Author of that Book saith, that against an erroneous Judgment all Remedy is by this Statute taken away. And though neither Reason, nor the Office of a King, nor any Law positive can prohibit the remedying of any Injury, much less of an unjust Sentence, yet he shews many Statutes, wherein a Man's Conscience ought to prevail above the Law.

*Pb.* Upon what ground can he pretend, that all Remedy in this Case is by this Statute prohibited?

*La.* He says it is thereby enacted, that Judgment given by the King's Courts shall not be examined in the Chancery, Parliament, nor elsewhere.

*Pb.* Is there any Mention of Chancery in this Act? It cannot be examined before the King and his Council, nor before the Parliament, but you see that before the Statute it was examined somewhere, and that this Statute will have it examined there again.

And seeing the Chancery was altogether the highest Office of Judicature in the Kingdom for Matter of Equity, and that the Chancery is not here forbidden to examine the Judgments of all other Courts, at least it is not taken from it by this Statute. But what Cases are there in this Chapter of the Doctor and Student, by which it can be made probable, that when Law and Conscience, or Law and Equity, seem to oppugn one another, the written Law should be preferred?

*La.* If the Defendant wage his Law in an Action of Debt brought upon a true Debt, the Plaintiff hath no Means to come to his Debt by way of Compulsion, neither by *Subpœna*, nor otherwise, and yet the Defendant is bound in Conscience to pay him.

*Pb.* Here is no preferring that I see, of the Law above Conscience, or Equity; for the Plaintiff in this Case loseth not his Debt for want either of Law, or Equity, but for want of Proof; for neither Law nor Equity can give a Man his Right, unless he prove it.

*La.* Also if the Grand Jury in Attaint affirm a false Verdict given by the Petty Jury, there is no farther Remedy, but the Conscience of the Party.

*Pb.* Here again the want of Proof is the want of Remedy; for if he can prove that the Verdict given was false, the King can give him Remedy such way as himself shall think best; and ought to do it, in case the Party shall find Surety, if the same